

The Presiding Officers of the Labour Court, Industrial Tribunal and National Tribunal (Salaries, Allowances and other Terms and Conditions of Service) Rules, 2015

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The Presiding Officers of the Labour Court, Industrial Tribunal and National Tribunal (Salaries, Allowances and other Terms and Conditions of Service) Rules, 2015

Rule

THE-PRESIDING-OFFICERS-OF-THE-LABOUR-COURT-INDUSTRIAL-TRIBUNAL-AND-NATIONAL-TRIBUNAL-SALARIES-ALLOWANCES-AND-OTHER-TERMS-AND-CONDITIONS-OF-SERVICE-RULES-2015 of 2015

Published on 6 April 2015

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The Presiding Officers of the Labour Court, Industrial Tribunal and National Tribunal (Salaries, Allowances and other Terms and Conditions of Service) Rules, 2015

Published vide Notification No. G.S.R. 336(E), dated 6th April, 2015

G.S.R. 336(E). - In exercise of the powers conferred by clause (c) of sub-section(1) of Section 38 of the Industrial Disputes Act, 1947, the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Presiding Officers of the Labour Court, Industrial Tribunal and National Tribunal (Salaries, Allowances and other Terms and Conditions of Service) Rules, 2015.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Industrial Disputes Act, 1947 (

14 of 1947

);

(b)

"Presiding Officer" means a person appointed as presiding officer under Sections 7, 7A or Section 7B of the Act.

(2)

All other words and expressions used and not defined in these rules but defined in the Act shall have meanings respectively assigned to them in the Act.

3.

Duration.

- In case of appointment on deputation of serving judges as presiding officer, the normal period of appointment shall be for a period of three years and in case of retired judges, the appointment shall be till the age of 65 years.

4.

Salary.

(1)

The Pay of the Presiding Officer of National Tribunal shall be fixed @ Rs 80,000/- (fixed) per month and this shall include the deputation allowance in case of serving judges and gross pension in case of retired judges.

(2)

The Salary of the Presiding Officer of the Labour Court or Industrial Tribunal shall be-

(i)

the District Judge (Entry Level) - Rs. 51,550-1230-58,930-1380-63,070

(ii)

the District Judge (Selection Grade) - Rs. 57,700-1230-58,930-1380-67,210

(iii)

the District Judge (Super time Scale) - Rs. 70,290-1540-76,450

per month inclusive of gross pension, pension equivalent or other retirement benefits, if any:

Provided that in the case of an appointment of a person as a presiding officer, who has retired from Judicial Service or as Deputy Chief Labour Commissioner (Central) or Joint Commissioner of the State Government and who is in receipt of or has received or has become entitled to receive any retirement benefit by way of pension, the pay of presiding officer shall be reduced by the gross amount of Pension from the Pay so fixed.

5.

Dearness Allowance.

(1)

The presiding officers of National Tribunal shall receive the dearness allowance at the rate as admissible to the serving judges of the High Court.

(2)

The presiding officers of the Labour Court or Industrial Tribunal shall be entitled to dearness allowance as applicable to

Group- "A" Officers of the Central Government drawing an equivalent pay from time to time subject to the condition that relief of pension is deducted from the emolument drawn during the period of re-employment.

6.

City Compensatory Allowance.

(1)

For presiding officers of National Tribunals, the city compensatory allowance shall be as admissible to the serving judges of High Courts.

(2)

For presiding officers of Labour Court or Industrial Tribunal, the city compensatory allowance shall be regulated under the rules as applicable to the Group -"A" Officers of the Central Government.

7.

Medical Concession.

(1)

For presiding officers of the National Tribunal, the Central Government Health Scheme facilities shall be available at the station of posting and where the Central Government Health Scheme is not in operation, they shall be entitled to the facilities as provided in the Central Services (Medical Attendance) Rules, 1944.

(2)

For presiding officers of the Labour Court or Industrial Tribunal, the medical facilities shall be regulated under the rules as applicable to the Group- "A" Officers of the Central Government.

8.

Leave.

(1)

For presiding officers of the National Tribunal, the matters relating to leave shall be as admissible to the serving judges of the High Courts.

(2)

For presiding officers of the Labour Court or Industrial Tribunal, the matters relating to leave shall be regulated under the rules as applicable to the Group- "A" Officers of the Central Government.

9.

House Rent Allowance.

(1)

For the presiding officers of the National Tribunal, there shall be provided rent free furnished accommodation or, as the case may be, the house rent allowance at the rate of thirty per cent of the basic pay.

(2)

For the presiding officers of the Labour Court or Industrial Tribunal, there shall be provided the House Rent Allowance as admissible to the Group-"A" Officers of the Central Government.

10.

Travelling Allowances.

- The presiding officers shall be entitled the travelling allowance as per their entitlement on the rates at the time of their re-employment.

11.

Leave Travel Concession.

(1)

For the presiding officers of the National Tribunal, the leave travel concession for self and family shall be as admissible to the highest grade in the Central Government.

(2)

For the presiding officers of the Labour Court or Industrial Tribunal, the Leave Travel Concession shall be regulated under the rules as applicable to re-employed person in respect of Presiding Officers appointed on re-employed basis.

12.

Conveyance Allowance.

(1)

For the presiding officers of the National Tribunal, there shall be provided the conveyance allowance in the form of a

fixed amount to be decided by the Central Government from time to time.

(2)

The presiding officers of the Labour Court or Industrial Tribunal may have an option either to have a staff car for official purposes or use of own vehicle with a grant of seventy five litres of petrol per month.

13.

Transfer Travelling Allowance.

(1)

The transfer travelling allowance shall be as admissible to a Government Servant of the highest grade from home town to headquarters for joining the National Industrial Tribunal or Labour Court and from headquarters to home town at the end of the assignment.

(2)

For the presiding officers of the Labour Court or Industrial Tribunal, the transfer travelling allowance shall be as per Central Government rules as applicable to re-employed person in respect of presiding officers appointed on re-employed basis.

14.

Contributory Provident Fund Scheme.

- The presiding officers shall be entitled to join Contributory Provident Fund Scheme as per rules during the period of re-employment.

15.

Other Conditions of Service.

- Matters relating to the terms and conditions of service of the Chairperson or other Members with respect to which no express provisions has been made in these rules, shall be referred by the Labour Court, Industrial Tribunal or National Tribunal to the Central Government for its decision, and the decision of the Central Government thereon shall be binding.

16.

Power to relax.

- The Central Government have power to relax the provision of any of these rules in respect of any class or categories of persons.

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